

ORDER No. R1-2019-0010

WDID No. 1B771620MEN

**WASTE DISCHARGE REQUIREMENTS
for
CALPELLA COUNTY WATER DISTRICT
WASTEWATER TREATMENT FACILITY

MENDOCINO COUNTY**

The following Discharger is subject to waste discharge requirements as set forth in this Order:

Table 1. Discharger Information

Discharger	Calpella County Water District (CWD)
Name of Facility	Calpella CWD Wastewater Treatment Facility
Facility Address	151 Laws Avenue
	Ukiah, CA 95482

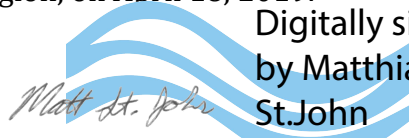
The discharge by the Calpella CWD from the discharge point identified below is subject to waste discharge requirements as set forth in this Order:

Table 2. Discharge Location

Discharge Point	Effluent Description	Discharge Point Latitude	Discharge Point Longitude	Receiving Water
001	Treated Municipal Wastewater	N 39° 13' 29"	W 123° 12' 6"	Groundwater

IT IS HEREBY ORDERED, that Order No. 86-116 is rescinded upon the effective date of this Order except for enforcement purposes, and, in order to meet the provisions contained in division 7 of the Water Code (commencing with section 13000) and regulations adopted thereunder, the Discharger shall comply with the requirements in this Order.

I, Matthias St. John, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, North Coast Region, on April 18, 2019.


Digitally signed
by Matthias
St. John
Date: 2019.04.25
12:01:49 -07'00'
Water Board
Matthias St. John
Executive Officer

I. FACILITY INFORMATION

The following Discharger is subject to waste discharge requirements as set forth in this Order:

Table 3. Facility Information

Discharger	Calpella CWD
Name of Facility	Calpella CWD Wastewater Treatment Facility
Facility Address	5681 North State Street
	Calpella, CA 95418
	Mendocino County
Facility Contact, Title, and Phone	Dave Redding, General Manager, 707-272-7857
Mailing Address	PO Box 115, Calpella, CA 95418
Type of Facility	Publicly Owned Treatment Works (POTW)
Facility Design Flow	0.080 million gallons per day (mgd) monthly Average Dry Weather Flow (ADWF); 0.530 mgd Peak Wet Weather Flow (PWWF)

II. FINDINGS

The California Regional Water Quality Control Board, North Coast Region (Regional Water Board), finds:

- A. Basis and Rationale for Requirements.** The Regional Water Board developed the requirements in this Order based on information submitted as part of the Discharger's previous application for permit renewal, monitoring data submitted during the term of the Discharger's previous order, and other available information.
- B. Background and Facility Description.** The Calpella CWD (Discharger) is currently discharging pursuant to Waste Discharge Requirements Order No. 86-116. The renewal of these waste discharge requirements is for the Calpella CWD Wastewater Treatment Facility (Facility). The Facility has a design ADWF of 0.080 mgd and a design PWWF of 0.530 mgd.

The Discharger owns a wastewater treatment and disposal system serving 149 domestic connections. The Discharger has a service contract with Willow County Water District for operations and maintenance. The system is comprised of two aerated lagoons, a facultative pond, a chlorine contact pipe, and three percolation ponds. Other components include an influent pump station, headworks, and a control building. Effluent from the facultative pond is directed to the chlorine contact chamber and slide gates control effluent flow rates to the percolation ponds. Disposal in the ponds is accomplished by a combination of evaporation and percolation. The percolation ponds are located approximately 60 feet to the west of the Russian River on the east side of Highway 101 in an agricultural and rural residential setting approximately two-thirds of a mile south of Calpella. The site is

bounded on the west by railroad tracks, on the east by the Russian River, and on the north and south by undeveloped land.

Attachment A provides a map of the area around the Facility. Attachment B provides a Facility flow schematic and hydraulic profile.

- C. Legal Authorities.** This Order serves as Waste Discharge Requirements (WDRs) for discharges to land issued pursuant to section 13263 of the California Water Code (Water Code).
- D. Basin Plan.** As required by Water Code section 13263(a), these WDRs are crafted to implement the Water Quality Control Plan for the North Coast Region (Basin Plan), and in so doing, the Regional Water Board has taken into consideration the beneficial uses to be protected, the water quality objectives (both numeric and narrative) reasonably required for that purpose, other (including previous) waste discharges, the need to prevent nuisance, and the provisions of Water Code section 13241. The Basin Plan contains implementation plans and policies for protecting waters of the basin. The Basin Plan implements State Water Resources Control Board (State Water Board) Resolution No. 88-63, which established state policy that all waters, with certain exceptions, should be considered suitable or potentially suitable for municipal or domestic supply.

Thus, beneficial uses applicable to area groundwater within the Ukiah Hydrologic Subarea of the Upper Russian River Hydrologic Area to be protected are as follows: municipal and domestic supply (MUN), agricultural water supply (AGR), industrial service supply (IND), industrial process supply (PRO), aquaculture (AQUA), and Native American culture (CUL).

The beneficial uses applicable to surface waters in the Ukiah Hydrologic Subarea within the Upper Russian River are as follows: municipal and domestic supply (MUN), agricultural water supply (AGR), industrial service supply (IND), industrial process supply (PRO), groundwater recharge (GWR), freshwater replenishment (FRSH), navigation (NAV), hydropower generation (POW), water contact recreation (REC-1), non-contact water recreation (REC-2), commercial and sport fishing (COMM), warm freshwater habitat (WARM) cold freshwater habitat (COLD), wildlife habitat (WILD), rare, threatened, or endangered species (RARE), migration of aquatic organisms (MIGR), spawning, reproduction, and/or early development (SPWN), shellfish harvesting (SHELL), and aquaculture (AQUA).

- E. Water Code.** Water Code establishes the authority for the Regional Water Board to establish water quality objectives, impose discharge prohibitions, and prescribe waste discharge and reclamation requirements. Water Code section 13241 requires each regional board to “establish such water quality objectives in water quality control plans as in its judgment will ensure the reasonable protection of beneficial uses and the prevention of nuisance [...]” The control of waste is established through effluent limitations and other requirements in Waste Discharge Requirement permits. Water Code section 13243 provides that “A regional board, in

a water quality control plan or in waste discharge requirements, may specify certain conditions or areas where the discharge of waste, or certain types of waste, will not be permitted.”

It is the Regional Water Board’s intent that this Order shall ensure attainment of water quality standards, applicable water quality objectives, and protection of beneficial uses of receiving waters. This Order therefore requires the Discharger to comply with all prohibitions, discharge specifications, receiving water limitations, standard provisions, and monitoring and reporting requirements. The Order further prohibits discharges from causing violations of water quality objectives or causing conditions to occur that create a condition of nuisance or water quality impairment in receiving waters as a result of the discharge.

F. Title 27 Exemption. The wastewater treatment, storage, and disposal activities described in this Order are exempt from the requirements of Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste in California Code of Regulations, title 27, division 2, Subdivision 1, section 20005, et seq. The activities are exempt from the requirements of title 27 so long as the activity meets, and continues to meet, all preconditions listed below. (Cal. Code Regs., tit. 27, § 20090.)

1. Sewage—Discharges of domestic sewage or treated effluent which are regulated by WDRs issued pursuant to California Code of Regulations, title 23, division 3, chapter 9, or for which WDRs have been waived, and which are consistent with applicable water quality objectives, and treatment or storage facilities associated with municipal wastewater treatment plants, provided that residual sludge or solid waste from wastewater treatment facilities shall be discharged only in accordance with the applicable State Water Board promulgated provisions of this division. (Cal. Code Regs., tit. 27, § 20090(a).)
2. Wastewater—Discharges of wastewater to land, including but not limited to evaporation ponds, percolation ponds, or subsurface leach fields if the following conditions are met:
 - a. the applicable Regional Water Board has issued WDRs, reclamation requirements, or waived such issuance;
 - b. the discharge is in compliance with the applicable water quality control plan; and
 - c. the wastewater does not need to be managed according to, California Code of Regulations, title 22, division 4.5, chapter 11, as a hazardous waste. (Cal. Code Regs., tit. 27, § 20090(b).)
3. Underground Injection—Discharges of waste to wells by injection pursuant to the Underground Injection Control Program established by the USEPA under the Safe Drinking Water Act, 42 US Code section 300(h), see Code of Federal Regulations title 40, Parts 144 to 146. (Cal. Code Regs., tit. 27, § 20090(c).)

4. Fully Enclosed Units—Waste treatment in fully enclosed facilities, such as tanks, or in concrete lined facilities of limited areal extent, such as oil water separators designed, constructed, and operated according to American Petroleum Institute specifications. (Cal. Code Regs., tit. 27, § 20090(i).)

G. Antidegradation Policy. State Water Board Resolution 68-16, the Statement of Policy with Respect to Maintaining High Quality Waters of California (hereafter the Antidegradation Policy) requires the disposal of waste be regulated to achieve the highest water quality consistent with the maximum benefit to the people of the state. The Antidegradation Policy (Policy) applies when a discharge may degrade high quality waters¹. The Policy requires the following:

1. Higher quality water will be maintained until it has been demonstrated to the state that any change will be consistent with the maximum benefit to the people of the state, will not unreasonably affect present and anticipated beneficial use of the water, and will not result in water quality less than prescribed in the policies.
2. Any activity that produces a waste and discharges to existing high quality waters will be required to meet Waste Discharge Requirements that will result in the best practicable treatment or control of the discharge necessary to assure pollution or nuisance will not occur, and the highest water quality consistent with the maximum benefit to the people of the state will be maintained.

Limited degradation of groundwater by some waste constituents associated with domestic wastewater effluent, after effective source control, treatment, and control measures are implemented, is consistent with the maximum benefit to the people of the state. The technology, energy, water recycling, and waste management advantages of centralized wastewater treatment systems far exceed any benefits derived from reliance on numerous, concentrated individual wastewater systems, and the cumulative impact on water quality will be substantially less. The economic prosperity of a small disadvantaged community and associated industry is of maximum benefit to the people of the state and provides sufficient justification for allowing the limited groundwater degradation that may occur pursuant to this Order provided the terms of the Basin Plan, and other applicable State Water Board and Regional Water Board policies are consistently met.

This Order is consistent with Resolution No. 68-16 because implementation of the Order will result in the application of management measures to treat the discharge of waste that constitutes the best practicable treatment or control of the discharge.. This Order contains discharge prohibitions, effluent limitations, receiving water limitations, monitoring requirements, and a requirement for the Discharger to complete a study to assess whether discharges are affecting groundwater quality. These provisions will ensure that the discharge does not result in exceedances of

¹ The Board interprets “high quality waters” as the best water quality that has existed since the Policy was adopted in 1968 after considering any subsequently authorized degradation that has been allowed in compliance with the Policy.

water quality standards and is protective of beneficial uses of groundwater and surface waters within the Ukiah Hydrologic Subarea.

This Order does not authorize an increased volume or concentration of waste, or a decreased level of treatment. This Order includes requirements to develop and implement a source control program to prevent toxic pollutants from passing through or interfering with the operation of the wastewater treatment system. This Order also includes new effluent monitoring requirements to ensure that the best practicable treatment and control measures are effective and protective of beneficial uses of groundwater and surface waters.

- H. Human Right to Water.** It is the policy of the State of California that every human being has the right to safe, clean, affordable, and accessible water adequate for human consumption, cooking, and sanitary purposes (Water Code §106.3, subd. (a)). The Safe Drinking Water Act provides that all Californians have a right to pure and safe drinking water (Health & Safety Code § 116270, subd. (a)). This Order promotes that policy by requiring the Discharger to handle and dispose of waste in a manner that will protect water quality objectives, including those that protect drinking water supplies.
- I. Endangered Species Act.** This Order does not authorize any act that results in the taking of a threatened or endangered species or any act that is now prohibited, or becomes prohibited in the future, under either the California Endangered Species Act (Fish and Game Code sections 2050 to 2097) or the Federal Endangered Species Act (16 U.S.C.A sections 1531 to 1544). The Discharger is responsible for meeting all requirements of the applicable Endangered Species Act.
- J. Monitoring and Reporting.** Water Code section 13267 authorizes the Regional Water Board to require technical and monitoring reports. The Monitoring and Reporting Program establishes monitoring and reporting requirements to implement State requirements. The Monitoring and Reporting Program is necessary to determine compliance with the conditions of this Order. As such, the burden, including costs, of this monitoring bears a reasonable relationship to the need for that information and the benefits to be obtained from that information. This Monitoring and Reporting Program is provided in Attachment C. The Executive Officer of the Regional Water Board is delegated the authority to modify the Monitoring and Reporting Program, as appropriate to protect water quality.
- K. California Environmental Quality Act (CEQA).** In November 2000, the Calpella CWD Board of Directors approved a Mitigated Negative Declaration for the Calpella County Water District Wastewater Treatment Plant Improvements project (Project) pursuant to CEQA (Public Resources Code § 21000 et seq.). In 2003, the Calpella CWD completed the Project, which resulted in an expansion of the plant capacity from an ADWF of 0.040 mgd to 0.080 mgd. The discharges covered under this permit are exempt pursuant to California Code of Regulations, title 14, section 15301 (ongoing or existing projects). The Facility is an existing wastewater

treatment facility with no expansion of use or wastewater flow beyond existing use or design capacity beyond what has already been approved and completed.

- L. Notification of Interested Parties.** The Regional Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe Waste Discharge Requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations.
- M. Consideration of Public Comment.** The Regional Water Board provided a 30-day written comment period prior to adoption of the Order, and in a public meeting, heard and considered all comments pertaining to the discharge.
- N. Petition of Action.** Any person aggrieved by this action of the Regional Water Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., 30 days after the date of this Order, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the Internet at: https://www.waterboards.ca.gov/public_notices/petitions/water_quality/ or will be provided upon request.

III. DISCHARGE PROHIBITIONS

- A.** The discharge of waste to the Russian River and its tributaries is prohibited.
- B.** The discharge of any waste not disclosed by the Discharger or not within the reasonable contemplation of the Regional Water Board is prohibited.
- C.** Creation of pollution, contamination, or nuisance as defined by section 13050 of the Water Code is prohibited.
- D.** The discharge of untreated or partially treated waste (i.e., receiving a lower level of treatment than described in Finding II.B) from anywhere within the collection, treatment, or disposal system is prohibited.
- E.** Any sanitary sewer overflow (SSO) that results in a discharge of untreated or partially treated wastewater to (a) waters of the state or (b) land that creates pollution, contamination, or nuisance as defined in Water Code section 13050 is prohibited.
- F.** The discharge of waste to land that is not owned by or under agreement to use by the Discharger is prohibited.
- G.** The discharge of waste at any point not described in Table 2 or authorized by a permit issued by the State Water Board or Regional Board is prohibited.

- H. The average monthly dry weather flow of waste through the Facility shall not exceed 0.080 mgd. Compliance with this prohibition shall be determined as defined in section IX.B of this Order.
- I. Discharges of waste that violate any narrative or numerical water quality objective that are not authorized by waste discharge requirements or other order or action by the Regional or State Water Board are prohibited.
- J. The discharge of septage or other bulk, high-strength wastes into the Facility or the sanitary sewer system is prohibited.

IV. EFFLUENT LIMITATIONS

- A. The Discharger shall maintain compliance with the following effluent limitations for the discharge of treated wastewater to the percolation ponds, with compliance measured at Monitoring Location EFF-001 as described in the Monitoring and Reporting Program.

Table 4. Effluent Limitations

Parameter	Units	Effluent Limitations			
		Average Monthly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	50	80	--	--
Total Suspended Solids	mg/L	50	80	--	--
Settleable Solids	ml/L	0.1	0.2	--	--
Coliform Organisms	MPN/100 ml	23 ²	230		
pH	Standard units	--	--	6.5	8.5

V. DISCHARGE SPECIFICATIONS

- A. **Objectionable Odor.** The Discharger shall prevent objectionable odors originating at the Facility from being perceivable beyond the limits of the wastewater treatment and disposal areas.
- B. **Public Contact.** The Discharger shall preclude or control public contact with wastewater through such means as fences and signs, or other applicable alternatives.
- C. **Vector Control.** The Discharger shall manage the Facility and effluent disposal area to prevent the breeding of mosquitos.

² Median.

VI. SOLIDS HANDLING REQUIREMENTS

- A.** Sludge, as used in this Order, means the solid, semisolid, and liquid residues removed during primary or secondary wastewater treatment processes.
- B.** All collected sludges and other solid waste removed from liquid wastes shall be removed from the lift station as needed to ensure optimal plant operation.
- C.** All collected sludges and other solid waste removed from liquid wastes shall be disposed of at a legal point of disposal, in accordance with applicable federal and State regulations.
- D.** The use and disposal of biosolids shall comply with all of the land application and disposal requirements in 40 Code of Federal Regulations (CFR) Part 503, which are enforceable by the U.S. EPA, not the Regional Water Board. If during the life of this Order, the state accepts primacy for implementation of 40 CFR Part 503, the Regional Water Board may also initiate enforcement where appropriate.
- E.** Sludge or biosolids that are disposed of in a municipal solid waste landfill or used as daily landfill cover shall meet the applicable requirements of 40 CFR Part 258. In the annual self-monitoring report, the Permittee shall report the amount of sludge placed in a landfill and the landfill(s) which received the sludge or biosolids.
- F.** The Discharger shall prevent and minimize any sludge use or disposal in violation of this Order that may adversely affect human health or the environment.
- G.** Solids and sludge storage shall not create a nuisance, such as objectionable odors or flies, and shall not result in groundwater contamination.
- H.** Solids and sludge storage sites shall have facilities adequate to divert surface water runoff from adjacent areas, to protect the boundaries of the site from erosion, and to prevent drainage from the storage site. Adequate protection is defined as protection from at least a 100-year storm with a 100-year recurrence interval and 24-hour duration.
- I.** The storage of sludge and solids shall not cause waste material to be in a position where it is, or can be, conveyed from the storage site and deposited in waters of the State.

VII. RECEIVING WATER LIMITATIONS

A. Groundwater Limitations

- 1.** The collection, treatment, storage, and disposal of wastewater shall not cause or contribute to degradation of groundwater quality unless a technical evaluation is performed that demonstrates that any degradation that could reasonably be expected to occur, after implementation of all regulatory requirements (e.g., Basin Plan) and reasonable best management practices, will not violate

groundwater quality objectives or cause impacts to beneficial uses of groundwater.

2. The collection, treatment, storage and disposal of the treated wastewater shall not cause or contribute to levels of chemical constituents in groundwater that exceed the primary and secondary maximum contaminant levels specified in California Code of Regulations, title 22, Table 64431-A, Table 64444-A, Table 64449-A, and Table 64449-B.
3. The collection, treatment, storage and disposal of the treated wastewater shall not cause or contribute to levels of radionuclides in groundwater in excess of the limits specified in California Code of Regulations, title 22, Table 64442 and Table 64443.
4. The collection, treatment, storage, and disposal of wastewater shall not cause groundwater to contain taste- or odor-producing substances in concentrations that cause nuisance or adversely affect beneficial uses.
5. The collection, treatment, storage and disposal of the treated wastewater shall not cause the median concentration of coliform organisms over any 7-day period to exceed 1.1 MPN per 100 milliliters or 1 colony per 100 milliliters.
6. Groundwaters shall not contain toxic substances in concentrations that are toxic to, or that produce detrimental physiological responses in humans, or that adversely affects beneficial uses. This limitation applies regardless of whether the toxicity is caused by a single substance or the synergistic effect of multiple substances.

VIII. GENERAL PROVISIONS

Failure to comply with provisions or requirements of this Order, may subject the Discharger to administrative or civil liabilities, criminal penalties, and/or other enforcement remedies. Additionally, certain violations may subject the Discharger to civil or criminal enforcement from appropriate local, state, or federal law enforcement entities. The Discharger shall comply with the following provisions:

- A. **Availability.** A copy of this Order and the associated Monitoring and Reporting Program shall be maintained at the Facility and be available at all times to operating personnel.
- B. **Enforcement.** The Discharger shall operate and maintain the Facility as described in this Order. Violation of any requirements contained in this Order subject the Discharger to enforcement action, including administrative civil liability or civil liability under the Water Code.
- C. **Severability.** Provisions of these waste discharge requirements are severable. If any provision of these requirements is found invalid, the remainder of these requirements shall not be affected.

- D. Sanitary Sewer Overflows.** On May 2, 2006, the State Water Board adopted State Water Board Order No. 2006-0003-DWQ, Statewide General WDRs for Sanitary Sewer Systems. Order No. 2006-0003-DWQ requires that all public agencies that currently own or operate sanitary sewer systems apply for coverage under the General WDRs by November 2, 2006. On September 9, 2013, the State Water Board adopted Order No. WQ-2013-0058-EXEC amending Monitoring and Reporting Program for Statewide General Waste Discharge Requirements for Sanitary Sewer Systems. The Discharger has coverage under, and is separately subject to the requirements of Order Nos. 2006-0003-DWQ and WQ-2013-0058-EXEC and any future revisions thereto for operation of its wastewater collection system.
- E. Operation and Maintenance.** The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) that are installed or used by the Discharger to achieve compliance with this Order. Proper operation and maintenance includes adequate laboratory control and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order.

The Discharger shall maintain an updated Operation and Maintenance Manual (O&M Manual) for the operational components of the Facility. The Discharger shall update the O&M Manual, as necessary, to conform to changes in operation and maintenance of the Facility. The Discharger shall operate and maintain the Facility in accordance with the most recently updated O&M Manual. The O&M Manual shall be readily available to operating personnel on-site and for review by state inspectors.

- F. Source Control Provisions.** The Discharger shall perform source control functions and provide a summary of source control activities conducted in the Discharger's Annual Report (due March 1st of each year). Source control functions and requirements shall include the following:
1. Implement the necessary legal authorities to monitor and enforce source control standards, restrict discharges of toxic materials to the collection system and inspect facilities connected to the system.
 2. If waste haulers are allowed to discharge to the Facility, establish a waste hauler permit system, to be reviewed by the Regional Water Board Executive Officer, to regulate waste haulers discharging to the collection system or Facility.
 3. Perform public outreach to educate industrial, commercial, and residential users about the importance of preventing discharges of industrial and toxic wastes to the collection system or Facility;
 4. Perform ongoing inspections and monitoring, as necessary, to ensure adequate source control.

- G. Change in Discharge.** The Discharger shall promptly report to the Regional Water Board any material change in the character, location, or volume of the discharge.
- H. Change in Control or Ownership.** In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the Discharger, the Discharger shall notify the Water Board of such changes in writing and shall also notify the succeeding owner or operator of the existence of this Order and current compliance status in writing. The succeeding owner or operator, in order to obtain authorization for discharges regulated by this Order, must apply in writing to the Regional Water Board Executive Officer, requesting transfer of the Order. This request must include complete identification of the new owner or operator, the reasons for the change, and effective date of the change. Discharges conducted without submittal of this request will be considered discharges without waste discharge requirements, which are violations of the Water Code.
- I. Vested Rights.** This Order does not convey any property rights of any sort or any exclusive privileges. The requirements prescribed herein do not authorize the commission of any act causing injury to persons or property, nor protect the Discharger from liability under federal, state, or local laws, nor create a vested right for the Discharger to continue the waste discharge.
- J. Monitoring and Reporting.** The Discharger shall comply with the Monitoring and Reporting Program and any modifications to these documents as specified by the Regional Water Board Executive Officer. Chemical, bacteriological, and bioassay analyses shall be conducted at a laboratory certified for such analyses by the State of California Environmental Laboratory Accreditation Program. The Discharger shall comply with the MRP in Attachment C of this Order and any future revisions thereto.
- K. Records Retention.** The Discharger shall maintain records of all monitoring information, including calibration and maintenance records and all strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended upon notification of extension by the Regional Water Board Executive Officer.
- L. Signatory Requirements.** All reports shall be signed by persons identified below:
1. For a corporation: by a principal executive officer of at least the level of senior vice-president.
 2. For a partnership or sole proprietorship: by a general partner or the proprietor.
 3. For a municipality, state, federal or other public agency: by either a principal executive officer or ranking elected or appointed official.

4. A duly authorized representative of a person designated in L1, L2 or L3 of this requirement if;
 - a. the authorization is made in writing by a person described in L1, L2 or L3 of this provision;
 - b. the authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity, such as the position of plant manager, operator of a waste management unit, superintendent, or position of equivalent responsibility. (A duly authorized representative may thus be either a named individual or any individual occupying a named position);
 - c. the authorization is submitted to the Regional Water Board prior to or together with any reports, information, or applications signed by the authorized representative.
5. Any person signing a document under paragraph (a) or (b) of this provision shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted, is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

M. Inspections. The Discharger shall permit authorized staff of the Regional Water Board the following:

1. Entrance to the premises in which treatment, collection or management of waste occurs, where an effluent source is located or in which any records required by this Order are kept;
2. Access to inspect and copy any monitoring equipment or records required for compliance with terms and conditions of this Order; and
3. Access to sample any discharge or monitoring location associated with the Facility.

N. Noncompliance. In the event the Discharger is unable to comply with any of the conditions of this Order due to breakdown of waste treatment equipment, accidents caused by human error or negligence, or other causes such as acts of nature, the Discharger shall notify Regional Water Board staff by telephone as soon as it or its agents have knowledge of the incident and confirm this notification in writing within five (5) business days of the telephone notification. The written notification

shall include pertinent information explaining reasons for the noncompliance and shall indicate the steps taken to correct the problem and the dates thereof, and the steps being taken to prevent the problem from recurring.

- O. Revision of Requirements.** The Regional Water Board will review this Order periodically and may revise requirements when necessary.
- P. Operator Certification.** Supervisors and operators of wastewater treatment plants shall possess a certificate of appropriate grade in accordance with title 23, California Code of Regulations, section 3680. The State Water Board may accept experience in lieu of qualification training. In lieu of a properly certified wastewater treatment plant operator, the State Water Board may approve use of a water treatment plant operator of appropriate grade certified by the State Water Board Division of Drinking Water where water reclamation is involved.
- Q. Adequate Capacity.** If the Discharger's wastewater treatment plant will reach capacity within 4 years, the Discharger shall notify the Regional Water Board. A copy of such notification shall be sent to appropriate local elected officials, local permitting agencies, and the press. Factors to be evaluated in assessing reserve capacity shall include, at a minimum, (1) comparison of the wet weather design flow with the highest daily flow, and (2) comparison of the average dry weather design flow with the lowest 30-day flow. The Discharger shall demonstrate that adequate steps are being taken to address the capacity problem. The Discharger shall submit a technical report to the Regional Water Board showing how flow volumes will be prevented from exceeding capacity, or how capacity will be increased, within 120 days after providing notification to the Regional Water Board, or within 120 days after receipt of Regional Water Board notification, that the Facility will reach capacity within 4 years. The time for filing the required technical report may be extended by the Regional Water Board. An extension of 30 days may be granted by the Regional Water Board Executive Officer, and longer extensions may be granted by the Regional Water Board itself (title 23, Cal. Code of Regs., section 2232).
- R. Special Study to Evaluate the Potential Impact to Groundwater.** The Discharger shall conduct an evaluation to confirm that the discharge of treated municipal wastewater from the community percolation pond to groundwater complies with the groundwater limitations set forth in section VII.A. of this Order. At a minimum, the evaluation must include preparation and submission of a preliminary scope of work that describes the proposed investigative work to be undertaken, a final work plan that includes work tasks and milestones to complete the evaluation, and a final report that presents the results and conclusion of the evaluation. In the event that the final report concludes that the percolation pond discharge is not attaining groundwater limitations, the final report shall include a work plan with a proposed compliance schedule to bring the discharge into compliance with groundwater limitations as soon as practicable.

The preliminary scope of work shall be submitted to the Regional Water Board Executive Officer **within 18 months after Order adoption**. The final work plan

shall be submitted for approval by the Regional Water Board Executive Officer **within 6 months after approval of the preliminary scope of work.** The Discharger shall implement the approved final workplan per the schedule of implementation and if applicable per the compliance schedule set forth to bring the discharge into compliance with groundwater limitations.

IX. COMPLIANCE DETERMINATION

Compliance with this Order will be determined as specified below.

A. Multiple Sample Data

When determining compliance with an average effluent limitation, and more than one sample result is available, the Discharger shall compute the arithmetic mean unless the data set contains one or more reported determinations of "Detected, but Not Quantified" (DNQ) or "Not Detected" (ND). In those cases, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:

1. The data set shall be ranked from low to high, ranking the ND concentrations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND and DNQ determinations is not important.
2. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, the median is the average of the two middle values, unless one or both of the points are ND or DNQ, in which case a value of zero shall be used for the ND or DNQ value in the median calculation for compliance purposes only. Using a value of zero for DNQ or ND samples does not apply when performing reasonable potential or antidegradation analyses.

B. Monthly Average Dry Weather Flow

Compliance with the monthly average dry weather flow prohibition in section III.I of this Order will be determined once each month by evaluating all flow data collected in the corresponding calendar month. The flow through the Facility, measured daily and averaged monthly, must be 0.040 mgd or less, during dry weather conditions, for the month in any calendar year with the lowest average monthly flow.

C. Instantaneous Minimum Effluent Limitations

If the analytical result of a single grab sample is lower than the instantaneous minimum effluent limitation for a parameter, the Discharger will be considered out of compliance for that parameter for that single sample. Non-compliance for each sample will be considered separately (e.g., the results of two grab samples taken within a calendar day that both are lower than the instantaneous minimum effluent

limitation would result in two instances of non-compliance with the instantaneous minimum effluent limitation).

D. Instantaneous Maximum Effluent Limitations

If the analytical result of a single grab sample is higher than the instantaneous maximum effluent limitation for a parameter, the Discharger will be considered out of compliance for that parameter for that single sample. Non-compliance for each sample will be considered separately (e.g., the results of two grab samples taken within a calendar day that both exceed the instantaneous maximum effluent limitation would result in two instances of non-compliance with the instantaneous maximum effluent limitation).

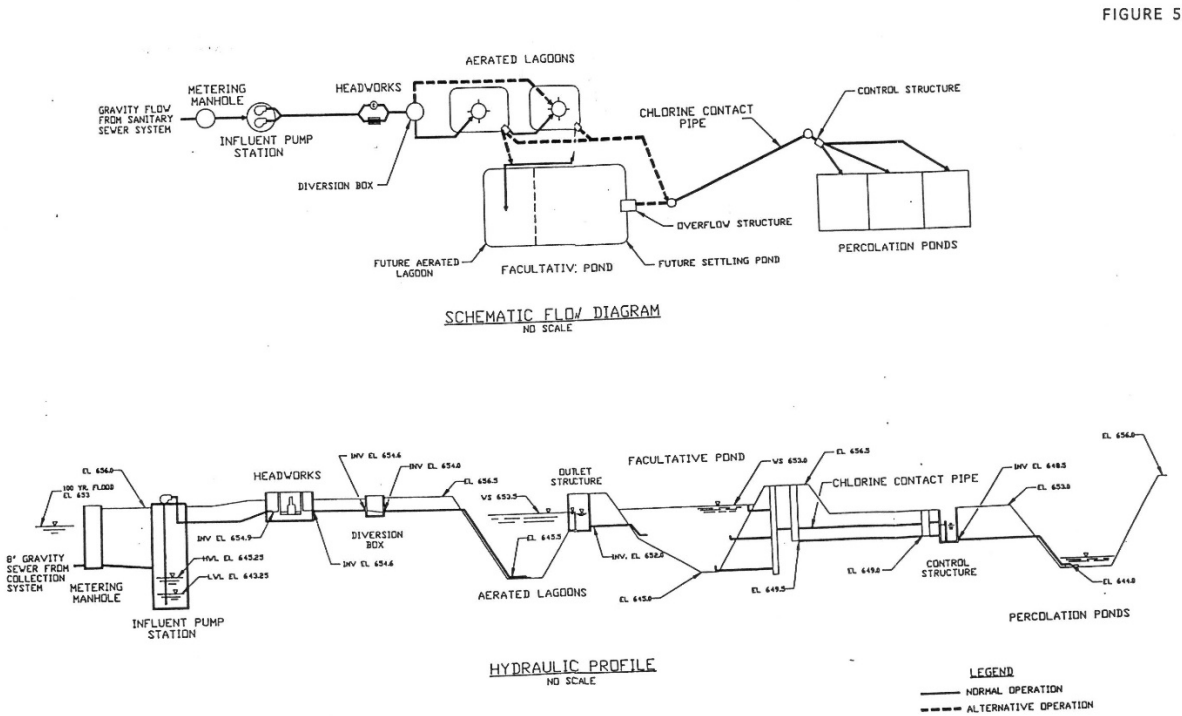
E. Bacteriological Limitations

The median is the central tendency concentration of the pollutant. The data set shall be ranked from low to high, ranking the ND concentrations lowest, DNQ determinations next, followed by quantified values. The order of the individual ND and DNQ determinations is not important. The median value is determined based on the number of data points in the data set. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, the median is the average of the two middle values, unless one or both points are ND or DNQ, in which case the median value shall be the lower of the two middle data points. DNQ is lower than a detected value, and ND is lower than DNQ.

ATTACHMENT A - FACILITY MAP



ATTACHMENT B – FLOW SCHMATIC AND HYDRAULIC PROFILE



ATTACHMENT C- MONITORING AND REPORTING PROGRAM

California Water Code (Water Code) section 13267 authorizes the Regional Water Quality Control Board (Regional Water Board) to require technical and monitoring reports. This MRP establishes monitoring and reporting requirements, which implement California regulations.

I. GENERAL MONITORING PROVISIONS

- A. Wastewater Monitoring Provision.** Composite samples may be taken by a proportional sampling device approved by the Regional Water Board Executive Officer or by grab samples composited in proportion to flow. In compositing grab samples, the sampling interval shall not exceed 1 hour.
- B. Supplemental Monitoring Provision.** If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculation and reporting of the data submitted in the monthly and annual self-monitoring reports.
- C. Laboratory Certification.** Laboratories analyzing monitoring samples shall be certified by the State of California Environmental Laboratory Accreditation Program, and must include quality assurance/quality control data with their reports. The Discharger may analyze pollutants with short hold times (e.g., pH, chlorine residual, etc.) in its on-site laboratory provided that the Discharger has standard operating procedures (SOPs) that identify quality assurance/quality control procedures to be followed to ensure accurate results.
- D. Minimum Levels.** Compliance and reasonable potential monitoring analyses shall be conducted using commercially available and reasonably achievable detection limits that are lower than the applicable effluent limitation. If no minimum level (ML) value is below the effluent limitation, the lowest ML shall be selected as the reporting level (RL).
- E. Monitoring Equipment Provision.** All monitoring and analysis instruments and devices used by the Discharger to fulfill this MRP shall be properly maintained and calibrated as recommended by the manufacturer to ensure their continued accuracy. The calibration interval for flow measurement devices shall not exceed 5 years.

II. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the discharge prohibitions, discharge specifications, and other requirements in this Order:

Table C-1 Monitoring Station Locations

Discharge Point Name	Monitoring Location Name	Monitoring Location Description
---	INF-001	Influent monitoring location
001	EFF-001	Effluent monitoring location following treatment prior to discharge to percolation pond

III. MONITORING REQUIREMENTS

A. Influent Monitoring. The Discharger shall measure and record the volume of influent wastewater at Monitoring Location INF-001 as follows:

Table C-2. Influent Flow – Monitoring Location INF-001

Parameter	Units	Sample Type	Minimum Sampling Frequency
Flow (Daily, Monthly Average)	mgd	Meter	Continuous

B. Effluent Monitoring. When discharging at Discharge Point 001, the Discharger shall monitor the volume of treated effluent at Monitoring Location EFF-001 as follows:

Table C-3. Effluent – Monitoring Location EFF-001

Parameter	Units	Sample Type	Minimum Sampling Frequency
Flow (Daily, Monthly Average)	mgd	Meter	Continuous
pH	Standard Units	Grab	Weekly
Settleable Solids	ml/L	Grab	Weekly
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	Grab	Weekly
Total Suspended Solids	mg/L	Grab	Weekly
Coliform Organisms	MPN/100 ml	Grab	Weekly
Chlorine Residual	mg/L	Grab	Daily
Nitrogen, Total (as N)	mg/L	Grab	May and October of each year
Nitrogen, Nitrate (as N)	mg/L	Grab	May and October of each year

Table C-3. Effluent – Monitoring Location EFF-001

Parameter	Units	Sample Type	Minimum Sampling Frequency
Title 22 Pollutants ³	ug/L	Grab	1 x / 5 years; first sampling event to take place May 2020

IV. REPORTING REQUIREMENTS

A. Self-Monitoring Reports (SMRs)

1. The Discharger shall submit monthly SMRs including the results for all monitoring specified in this MRP. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR.
2. Monthly SMRs shall be submitted by the first day of the second calendar month, following the month of sampling. All monitoring results shall include complete laboratory data sheets for each analysis and be submitted in conjunction with the monthly SMR. Annual summary reports shall be submitted by March 1st each year.
3. Monitoring periods for all required monitoring shall be completed according to the following schedule:

Table C-4 Monitoring Periods and Reporting Schedule

Sampling Frequency	Monitoring Period Begins On	Monitoring Period
Daily	Permit Effective Date	(Midnight through 11:59 PM) or any 24-hour period that reasonably represents a calendar day for purposes of sampling.
Weekly	Sunday following permit effective date or on permit effective date if on a Sunday	Sunday through Saturday
Monthly	First day of calendar month following permit effective date or on permit effective date if that date is first day of the month	1 st day of calendar month through last day of calendar month
Quarterly	First day of calendar quarter following permit effective date or on permit effective date if that date is first day of the quarter	January 1 through March 30 April 1 through June 30 July 1 through September 30 October 1 through December 31
Annually	January 1 following (or on) permit effective date	January 1 through December 31

³ See Table 64431-A, MCLs – Inorganic Chemicals (§64431) and Table 64444-A, MCLs – Organic Chemicals (§64444)

- 4.** The Discharger shall report with each sample result the applicable ML, the RL and the current MDL, as determined by the procedure in Standard Methods.
- 5.** The Discharger shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:
 - a.** Sample results greater than or equal to the reported ML shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).
 - b.** Sample results less than the RL, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified" or DNQ. The estimated chemical concentration of the sample shall also be reported.

For the purposes of data collection, the laboratory shall write the estimated chemical concentration next to DNQ as well as the words "Estimated Concentration" (may be shortened to "Est. Conc."). The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy (+ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.
 - c.** Sample results less than the laboratory's MDL shall be reported as "Not Detected" or ND.
 - d.** Dischargers are to instruct laboratories to establish calibration standards so that the ML value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.
- 6.** The Discharger shall submit monthly SMRs in accordance with the following requirements:
 - a.** The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the Facility is operating in compliance with effluent limitations and other WDR requirements.
 - b.** The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify:
 - i.** Facility name and address;
 - ii.** WDID number;
 - iii.** Applicable period of monitoring and reporting;
 - iv.** Violations of the WDRs (identified violations must include a description of the requirement that was violated and a description of the violation);
 - v.** Corrective actions taken or planned; and
 - vi.** The proposed time schedule for corrective actions.

- c. The Monthly SMRs, Annual Report, and Source Control Activity Report must be submitted to the Regional Water Board, signed and certified as required by the General Provisions, to: NorthCoast@waterboards.ca.gov or on disk (CD or DVD) in a Portable Document Format (PDF) file in lieu of paper-sourced documents. The guidelines for electronic submittal of documents can be found on the Regional Water Board website at:

https://www.waterboards.ca.gov/northcoast/publications_and_forms/available_documents/pdf/2014/ECM_Letter-Guidelines.pdf

At any time during the term of this permit, the Regional Water Board may notify the Discharger to electronically submit both technical and Self-Monitoring Reports (SMRs) to the State Water Board's GeoTracker database in searchable Portable Document Format (pdf). In addition, analytical data will be required to be uploaded to the GeoTracker database under a site-specific global identification number that will be assigned to the Discharger. Information on the GeoTracker database is provided on the State Water Board website at:

https://www.waterboards.ca.gov/resources/data_databases/groundwater.shtml

B. Other Reports

1. **Annual Report.** The Discharger shall submit an annual report, as per section IV.A.6.c, to the Regional Water Board for each calendar year. The report shall be submitted by March 1 of the following year. The report shall, at a minimum, include the following:
 - a. **Monitoring Data Summaries.** Both tabular and, where appropriate, graphical summaries of the monitoring data and disposal records from the previous year. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculation and report of the data submitted in the SMR.
 - b. **Compliance Reporting.** A comprehensive discussion of the Facility's compliance (or lack thereof) with all effluent limitations and other WDRs, and the corrective actions taken or planned, which may be needed to bring the discharge into full compliance with the Order.
 - c. **Solids Reporting.** A summary report of solids pumping, handling and disposal. If the Discharger is required to monitor sludge prior to final disposal, the results of this monitoring shall be included in the summary report.
2. **Source Control Activity Report.** The Discharger shall submit a Source Control Activity Report, as per section IV.A.6.c, to the Regional Water Board for each

calendar year. The report shall describe source control activities performed by the Discharger during the calendar year, as required by General Provision VIII.F of the Order, including:

- a. A copy of any source control standards;
- b. A description of any waste hauler permit system;
- c. A summary of compliance and enforcement activities during the past year. The summary shall include the names and addresses of any industrial or commercial users under surveillance by the Discharger, an explanation of whether they were inspected, sampled, or both, the frequency of these activities at each user, and the conclusions or results from the inspection or sampling of each user.

C. Spill Notification

1. **Spills and Unauthorized Discharges.** Information regarding all spills and unauthorized discharges (except SSOs) that may endanger health or the environment shall be provided verbally to the Regional Water Board⁴ within 24 hours from the time the Discharger becomes aware of the circumstances and a written report shall also be provided within five (5) days of the time the Discharger becomes aware of the circumstances of the spill or unauthorized discharge.

Information to be provided verbally to the Regional Water Board includes:

- a. Name and contact information of caller;
- b. Date, time and location of spill occurrence;
- c. Estimates of spill volume, rate of flow, and spill duration, if available and reasonably accurate;
- d. Surface water bodies impacted, if any;
- e. Cause of spill, if known at the time of the notification;
- f. Cleanup actions taken or repairs made at the time of the notification;
- g. Actions taken to prevent the spill or unauthorized discharge from reoccurring; and
- h. Responding agencies.

⁴ The contact number of the Regional Water Board during normal business hours is (707) 576-2220. After normal business hours, spill reporting to CalEMA will satisfy the 24 hour spill reporting requirement for the Regional Water Board. The contact number for spill reporting for the CalEMA is (800) 852-7550.

- 2. Sanitary Sewer Overflows.** Notification and reporting of sanitary sewer overflows is conducted in accordance with the requirements of State Water Resources Control Board Order No. 2006-0003-DWQ (Statewide General WDRs for Sanitary Sewer Systems), as amended by State Water Resources Control Board Order No. WQ 2013-0058-EXEC, and any revisions thereto.